

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLJUI

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
CHRISTOPHER H. WALDMANN, M.A., LPC, LICENSE NO. 294

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the
Colorado State Grievance Board ("Board") and Christopher H.
Waldmann, M.A., LPC ("respondent"); as follows:

1. The Board has jurisdiction over the person of respondent
and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor
Examiners granted respondent a license to practice professional
counseling in Colorado on October 20, 1990. Respondent has been
licensed to practice professional counseling since that date and
was so licensed at all times relevant to the events resulting in
this stipulation and order. He holds license number 294.

3. On or about August 20, 1997, the State Grievance Board
received a complaint against respondent alleging practice below
generally accepted standards of practice, dual relationship, and
sexual misconduct.

4. Following review of the complaint and correspondence
from respondent's attorney, the Board referred this matter to the
Attorney General's office for action regarding respondent's
surrender of his Colorado license to practice professional
counseling.

5. Respondent understands he has the right to a formal
disciplinary hearing, pursuant to C.R.S. §12-43-705, with respect
to the complaint filed against him. Respondent further
understands and agrees that, by voluntarily and knowingly
entering into this stipulation and order, he waives his right to
a hearing; relieves the Board of its burden of proving the facts
and conduct contained in the complaint; gives up his right to

present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-705(5), he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent desires to resolve this matter by voluntarily surrendering his license to practice professional counseling in Colorado and agreeing to close his practice of psychotherapy without further proceedings in this matter.

7. Respondent hereby freely and voluntarily relinquishes and surrenders his license as a Professional Counselor in the State of Colorado.

8. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

9. This Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§ 12-43-705 and 24-4-105, and it will be considered a revocation of his professional counseling license.

10. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

11. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

12. This stipulation and order shall take effect on acceptance and signature by the Board.

13. This stipulation and order is a public record.


CHRISTOPHER H. WALDMANN, M.A., LPC
Respondent

DATED: 12-22-97

1997 ⁸ ACCEPTED, SIGNED, AND ORDERED this 30th day of JANUARY.

COLORADO STATE GRIEVANCE BOARD


DANIEL R. ROBINSON
Board Chair

APPROVED AS TO FORM

FOR THE RESPONDENT


ROBERT L. RANSOME

Attorney for Respondent
Christopher H. Waldmann, M.A.,
LPC

Suite 650
143 Union Boulevard
Lakewood, Colorado 80228
Telephone: 303/980-9937

FOR THE ATTORNEY GENERAL:


JAMES F. CARR, 9343
Senior Assistant Attorney General
Regulatory Law Section

Attorneys for State Grievance
Board

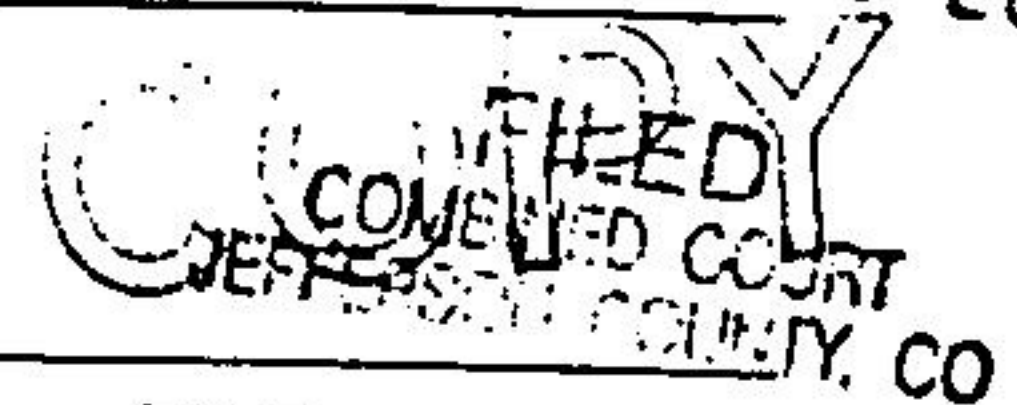
1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5283
AG Alpha No. RG GB DLJUI
AG File No. RLJC7327

DISTRICT COURT, JEFFERSON COUNTY, COLORADO

Case No. 98CV 210

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STIPULATED ORDER FOR INJUNCTION AND FINAL JUDGMENT
BY CONSENT OF THE PARTIES



THE PEOPLE OF THE STATE OF COLORADO
Ex rel. Gale A. Norton, Attorney General,

Plaintiff,

v.

CHRISTOPHER H. WALDMANN, M.A., LPC
Defendant.

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**OFFICE OF THE
ATTORNEY GENERAL**

Plaintiff Colorado State Grievance Board ("Board" or "plaintiff") filed its complaint in this matter seeking an injunction against defendant, Christopher H. Waldmann, M.A., LPC ("defendant" or "Waldmann") pursuant to C.R.S. §12-43-708. Defendant has appeared.

Plaintiff and defendant have consented to the entry of this order for injunction and judgment by consent of the parties. They have done so without trial or adjudication of any issue of fact or law; without this order constituting evidence against or admission by any party with respect to any issue; without defendant either admitting or denying that any of the allegations and grounds contained in the complaint are true; and without waiver by defendant of any defense to the complaint except with respect to the jurisdiction of this Court.

NOW, THEREFORE, upon the basis of the consent of the parties and being duly advised in the premises, before any testimony has been taken in this matter, and without trial or adjudication of any issue of fact or law in this matter, it is hereby

ORDERED, ADJUDGED, AND DECREED AS FOLLOWS:

1. This Court has jurisdiction over the subject matter of this action and over the parties to this action. The complaint alleges claims for relief against defendant under C.R.S. §12-43-708.

2. The provisions of this Order apply to the defendant.

3. As used in this Order, the term "psychotherapy" has the

same meaning and scope as C.R.S. §12-43-201(9) and the term "unlicensed psychotherapist" has the same meaning and scope as C.R.S. §12-43-201(10).

4. Defendant is hereby immediately enjoined, commencing on the date that the Court signs this stipulated order for injunction and judgment by consent of the parties, from practicing psychotherapy in the state of Colorado.

5. Defendant may not practice psychotherapy or engage in any activity determined by the Board under the laws of the state of Colorado to constitute psychotherapy, as defined in C.R.S. §12-43-201(9).

6. No agreement, understanding, representation, or interpretation not contained in this Order may be used to vary or to contradict its terms.

7. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

8. Each provision of this Order is separate. In the event of litigation involving compliance with the terms of this Order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the Order; and the parties will be obligated by the judicially-construed parts of the Order as if they were part of the original Order.

9. Defendant's failure to comply with this Order may be punished as contempt of Court.

10. The Court retains jurisdiction over this matter.

DATED this 30th day of Jan, 1993.

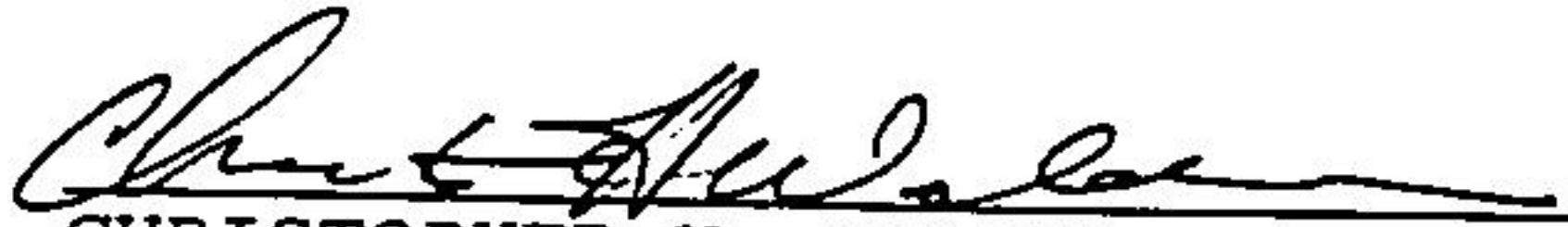
CHRISTOPHER J. MUNCH

DISTRICT COURT JUDGE

The parties hereby stipulate, agree, and consent to the terms and conditions of this Order and to its entry. By their signatures, the parties jointly move this Honorable Court to adopt this stipulated order in its entirety as an Order of this Court.

DEFENDANT:

PLAINTIFF, COLORADO STATE
GRIEVANCE BOARD:


CHRISTOPHER H. WALDMANN, M.A.,
LPC

By: 
Daniel R. Robinson
Board Chair

Dated: 12-22-97

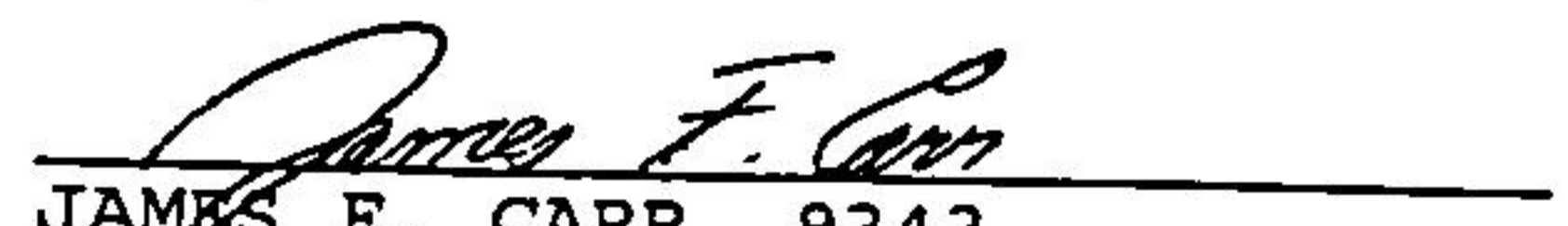
Dated: January 12, 1998

APPROVED AS TO FORM

FOR THE DEFENDANT:

FOR THE ATTORNEY GENERAL:


ROBERT L. RANSOME


JAMES F. CARR, 9343
Assistant Attorney General
Regulatory Law Section

Attorney for Defendant
Christopher H. Waldmann, M.A.,
LPC

Attorneys for Plaintiff
Colorado State Grievance Board

Suite 650
143 Union Boulevard
Denver, Colorado 80228
Telephone: 303/980-9937

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5283
AG Alpha No. RG GB DLJUI
AG File No. RLJC7330